

Court No. - 36

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1341 of 2020

Applicant :- Sunita Devi

Opposite Party :- Ravishankar Gupta, Assistant Engineer

Counsel for Applicant :- Vishnu Murti Tripathi

Hon'ble Mahesh Chandra Tripathi,J.

Before proceeding further in the matter, let copy of the application be given to Shri Krishna Agarwal, Advocate who represents the authority today itself to enable him to seek necessary instructions in the matter.

List this matter on 05.3.2020 in top ten of the cases.

Order Date :- 27.2.2020

RKP

Court No. - 36

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1341 of 2020

Applicant :- Sunita Devi

Opposite Party :- Ravishankar Gupta, Assistant Engineer

Counsel for Applicant :- Vishnu Murti Tripathi

Counsel for Opposite Party :- Krishna Agarawal

Hon'ble Mahesh Chandra Tripathi,J.

On the matter being taken up today, learned counsel for the applicant very fairly states that due to inadvertence the order dated 27.02.2020 could not be complied with as copy of the contempt application could not be served upon counsel for the opposite party and the same may be given to him today itself.

List this matter amongst top ten of the cases on 31.03.2020 showing the name of Ms. Usha Kiran, learned counsel for the opposite party.

Order Date :- 5.3.2020

A. Pandey

Court No. - 7

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1341 of 2020

Applicant :- Sunita Devi

Opposite Party :- Ravishankar Gupta, Assistant Engineer

Counsel for Applicant :- Vishnu Murti Tripathi

Counsel for Opposite Party :- Krishna Agarawal, Usha Kiran

Hon'ble Ajit Kumar, J.

Heard learned counsel for the parties.

Ms. Usha Kiran, learned counsel for the opposite party submits that new incumbent to the office of opposite party has taken over charge, therefore, he may be impleaded as opposite party.

Learned counsel for the applicant prays for and is granted a week's time to file impleadment application seeking impleadment of the new incumbent to the office of opposite party.

On perusal of the order of the Writ Court, it transpires that the respondent authorities electricity department was directed to give electricity connection to the petitioner as per Chapter IV of U.P. Electricity Supply Code, 2005.

Ms. Usha Kiran has drawn attention of the Court towards compliance affidavit along with which three documents have been filed as annexures 1, 2 & 3 whereby the applicant has been given electricity material by the electricity division to do necessary installations, however till date the applicant has not been able to do the needful and that is why the electricity connection could not be energised.

Counsel for the applicant submits that he does not have technical hand and if the electricity department outsources necessary technical hand he would be paying for the same.

In view of above it is directed that if the applicant approaches the opposite party within two weeks' from today along with an application to provide necessary technical hand, the opposite party, within a week thereafter, shall provide necessary technical hand to do the necessary installations of polls and stretching of line etc. The said exercise of necessary installations of polls and stretching line be carried out within 10 days and thereafter line should be energized within three days.

An affidavit of compliance shall be filed by the opposite party by the next date, failing which the new incumbent to the office of opposite party shall appear before this Court to show cause as to why he may not be prosecuted and punished for wilful and deliberate disobedience of order of this Court.

List on 26th October, 2021.

Order Date :- 8.9.2021

piyush

Court No. - 4

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1341 of 2020

Applicant :- Sunita Devi

Opposite Party :- Ravishankar Gupta, Assistant Engineer

Counsel for Applicant :- Vishnu Murti Tripathi

Counsel for Opposite Party :- Krishna Agarawal, Usha Kiran

Hon'ble Prakash Padia, J.

Pursuant to the order passed by this Court, an affidavit of compliance has been filed by Ms. Usha Kiran, learned counsel appearing on behalf of opposite party, the same is taken on record.

As prayed by the counsel for the applicant, ten days' time is granted to file a reply to the aforesaid affidavit.

List in the week commencing 22.11.2021.

Order Date :- 26.10.2021

Swati